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Case Number: 25STCV14472 Hearing Date: July 6, 2026 Dept: 32

LAURIE COHEN,

Plaintiff,

v.

FEDERAL INSURANCE

COMPANY, et al.,

Defendants.

Case No.: 25STCV14472

Hearing Date: July 6, 2026

[TENTATIVE]

order RE:

defendants contents consulting llc's and

thomas kirkpatrick's demurrer and motion to strike (CRS# 4773)

BACKGROUND

On May 16, 2025, Plaintiff Laurie

Cohen filed this action against Defendants Federal Insurance Company (FIC),

Contents Consulting LLC (CCL), Robert Garza (Garza), and Thomas Kirkpatrick

(Kirkpatrick). Plaintiff filed the operative Second Amended Complaint on May 5,

2026, asserting (1) breach of contract, (2) breach of the covenant of good

faith and fair dealing, and (3) negligent misrepresentation.

The dispute arises from the loss of Plaintiff's valuable personal property while stored at a storage facility. FIC insured Plaintiff's property but allegedly failed to provide sufficient coverage for the incident. Garza was the FIC adjuster who handled Plaintiff's claim. FIC retained CCL and its principal, Kirkpatrick, to inspect and appraise the property. CCL and Kirkpatrick were allegedly unqualified and undervalued the property. Plaintiff asserts the first and second causes of action against FIC, and the third cause of action against all four defendants.

On June 8, 2026, CCL and Kirkpatrick (collectively, Moving Defendants) filed the instant demurrer and motion to strike. Plaintiff filed an opposition to the demurrer on June 22, 2026. Moving Defendants filed a reply on June 26, 2026.

LEGAL STANDARD

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. (Taylor v. City of Los Angeles Dept. of Water and Power (2006) 144 Cal.App.4th 1216, 1228.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or by proper judicial notice. (Code Civ. Proc., § 430.30, subd. (a).) A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. (SKF Farms v. Superior Court (1984) 153 Cal.App.3d 902, 905.) Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed. (Ibid.) The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action. (Hahn, supra, 147 Cal.App.4th at 747.)

MEET AND CONFER

Before filing a demurrer or a motion to strike, the demurring or moving party is required to meet and confer with the party who filed the pleading demurred to or the pleading that is subject to the motion to strike for the purposes of determining whether an agreement can be reached through a filing of an amended pleading that would resolve the objections to be raised in the demurrer. (Code Civ. Proc., §§ 430.41, 435.5.)

The Court finds that Defendants have satisfied the meet and confer requirement.
(See Kargman Decl.)

DISCUSSION

I.

Elements of Fraud

“The elements of negligent misrepresentation are ‘(1) the misrepresentation of a past or existing material fact, (2) without reasonable ground for believing it to be true, (3) with intent to induce another’s reliance on the fact misrepresented, (4) justifiable reliance on the misrepresentation, and (5) resulting damage.’” (National Union Fire Ins. Co. of Pittsburgh, PA v. Cambridge Integrated Services Group, Inc. (2009) 171 Cal.App.4th 35, 50.) “[F]raud and negligent misrepresentation, must be pleaded with particularity—that is, the pleading must set forth how, when, where, to whom, and by what means the representations were made.” (Foster v. Sexton (2021) 61 Cal.App.5th 998, 1028.)

II.

The Statements at Issue

Here, the SAC attributes the following statements to Moving Defendants:

“On May 16, 2022, Contents Consulting’s Riley Kirkpatrick stated directly and personally to Plaintiff’s counsel Contents Consulting is a professional personal content appraiser company, hired by the insurance company, to do a good faith inspection of your items and determine damage and value. I would like to set up the appointment.”

(SAC ¶ 103.)

Kirkpatrick “personally called Plaintiff on November 4, 2022 and represented himself as a professional appraiser retained to inspect her property.”

(SAC

¶ 7.)

“By signing and approving the four CCL reports, Thomas Kirkpatrick made a second, independent, express misrepresentation: his signature represented to FIC and to Plaintiff that the reports were the professional work product of a qualified appraiser conforming to applicable professional standards.”

(SAC

¶¶ 109, 116-121.)

III.

Past or Existing Material Fact

a. “Professional” is Not an Actionable Representation

“To be

actionable, a negligent misrepresentation must ordinarily be as to past or existing material facts,” as opposed to “a promise to perform at some future time.” (Tarmann v. State Farm Mut. Auto. Ins. Co. (1991) 2 Cal.App.4th 153, 158.) Moreover, statements that reflect the speaker’s “judgment as to quality, value, authenticity, or other matters of judgment” are nonactionable. (Gentry v. eBay, Inc. (2002) 99 Cal.App.4th 816, 835.)

Here, Riley Kirkpatrick’s statement that CCL “is a professional personal content appraiser company” and Thomas Kirkpatrick’s statement that he is “a professional appraiser” are accurate representations of CCL’s and Kirkpatrick’s occupations. Plaintiff argues that CCL and Kirkpatrick lied about being “professional” appraisers because they lacked certifications from the ISA or USPAP or equivalent credentials, and they performed a photo-only review that did not conform to professional appraisal standards. (See SAC ¶ 121.)

However, neither CCL nor Kirkpatrick are alleged to have represented that they were accredited by the ISA or USPAP, or that they had some other type of certification. Similarly, neither CCL nor Kirkpatrick promised to conduct a particular type of appraisal or to perform more than a photo-only review.[1] Defendants’

statement that they were “professional” appraisers refers to the “quality, value, authenticity, or other matters of judgment,” not a verifiable assertion of fact. (See *Gentry*, supra, 99 Cal.App.4th at p. 835.)

b. Younan is Inapposite

Plaintiff alleges that under *Younan v.*

Equifax Inc. (1980) 111 Cal.App.3d 498, the “professional” statement “carried with it a representation that the inspection would be fairly conducted by a professionally qualified appraiser using USPAP compliant methodology.” (SAC ¶ 104.) Plaintiff also alleges that Defendants concealed the fact that the appraisal “would be a bogus inspection conducted by non-credentialed personnel through a photo-only methodology that did not conform to USPAP standards, predetermined to produce a false minimizing report.” (*Ibid.*)

However, “a cause of action for misrepresentation requires an affirmative statement, not an implied assertion.” (*RSB Vineyards, LLC v. Orsi* (2017) 15 Cal.App.5th 1089, 1102; see also *Vega v. Jones, Day, Reavis & Pogue* (2004) 121 Cal.App.4th 282, 291, fn. 6 [“negligent misrepresentation is a species of fraud requiring a positive assertion; an implied assertion or representation is not enough”].) For the same reason, an omission is also not actionable as negligent misrepresentation. (*Lopez v. Nissan North America, Inc.* (2011) 201 Cal.App.4th 572, 596.) Plaintiff’s theory relies on implications and omissions, not affirmative statements of fact. Thus, the allegations do not amount to negligent misrepresentation. Alleging a “scheme” similar to the one in *Younan* does not somehow allow Plaintiff to bypass the affirmative representation requirement for negligent misrepresentation. As the Court previously stated, *Younan* is distinguishable because it concerned intentional misrepresentation.

Younan is further distinguishable because

it involved a verifiable assertion of fact regarding the qualifications of the examiner. The defendants represented that the examiner was a “medical doctor” when he was actually a “clinical psychologist.” (*Younan*, supra, 111 Cal.App.3d at p. 504.) The defendants did not simply attach an adjective to describe the quality of the examiner’s services; they misrepresented the examiner’s actual occupation. By contrast, neither CCL nor Kirkpatrick are alleged to have misrepresented their occupations. They said they were appraisers, and they are. They made no statement about being accredited under any particular standard, nor are they legally required to be accredited or licensed. Plaintiff cannot rely on

implications from Defendants' use of the word "professional," because negligent misrepresentation cannot be based on implied assertions. "Professional" is a description of "quality, value, [or] authenticity," not an "affirmative statement" of fact. (See Gentry, supra, 99 Cal.App.4th at p. 835; RSB Vineyards, LLC, supra, 15 Cal.App.5th at p. 1102.)

c. Moving Defendants Made No Affirmative
Representations

Plaintiff claims that "a 'positive assertion of professional competence by an unqualified person' is an assertion of fact. (Friedman v. Merck & Co. (2003) 107 Cal.App.4th 454, 477)." (Opp. 9:14-16.) The court in Friedman said no such thing, nor did it otherwise suggest that referring to oneself as a "professional" constitutes an affirmative statement that the speaker is accredited under a particular standard.

Plaintiff also argues that "one who holds himself out as possessing professional expertise, and is engaged and paid on that basis, is liable for negligent misrepresentation of facts within his professed competence, whether or not he is licensed." (Opp. 9:25-10:2.) But this does not override the requirement for an affirmative representation. Moving Defendants never made any misrepresentation of facts within their professed competence. Plaintiff only implies that Defendants misrepresented their accreditations because Defendants called themselves "professional." Again, the law is clear that negligent misrepresentation cannot arise by implication. Beyond implication, Plaintiff is unable to identify any affirmative misrepresentation actually made by CCL or Kirkpatrick.

For these reasons, the alleged reports signed by Kirkpatrick do not support the negligent misrepresentation claim. Plaintiff's theory regarding the reports derives from the same implication theory: "by signing and approving the four Contents Consulting reports, Thomas Kirkpatrick represented that they were the professional work product of a qualified appraiser, when he was not qualified and the reports were the product of an uncredentialed, photo-only, non-USPAP review." (Opp. 11:21-12:4.) Kirkpatrick made no such representations, nor can such representations be implied from his signature.

In sum, the negligent

misrepresentation claim fails as a matter of law. Because it is apparent that Plaintiff is unable to state a negligent misrepresentation claim, leave to amend is not warranted.

II.

Motion to Strike

“No California case has allowed recovery for emotional distress arising solely out of property damage.” (Erich v. Menezes (1999) 21 Cal.4th 543, 554.) “[A] preexisting contractual relationship, without more, will not support a recovery for mental suffering where the defendant’s tortious conduct has resulted only in economic injury to the plaintiff.” (Id. at pp. 554-55.)

The instant case only involves property damage. Thus, emotional distress damages are not recoverable. Plaintiff cites Windeler v. Scheers Jewelers (1970) 8 Cal.App.3d 844 for the proposition that “emotional distress damages are recoverable where personal property of deep sentimental value known to the defendant is the subject of the wrongful conduct.” (SAC ¶ 175.) However, Windeler is distinguishable because the defendant jeweler and the plaintiff were in a bailor-bailee relationship, and the defendant jeweler was responsible for safekeeping the items of sentimental value. (Id. at pp. 850-52.)

By contrast, Plaintiff was not in a bailor-bailee relationship with CCL or Kirkpatrick, and CCL and Kirkpatrick were not responsible for the loss of Plaintiff’s property. CCL and Kirkpatrick became involved only after the property had already been lost. Moreover, the SAC does not allege that CCL or Kirkpatrick were aware of the property’s sentimental value. (See SAC ¶ 175 [“the sentimental and personal value of the collection was known to FIC through the scheduled items list and the nature of the coverage purchased”].)

Therefore, CCL’s and Kirkpatrick’s motion to strike is granted as to emotional distress damages.

CONCLUSION

Defendants Contents Consulting LLC’s and Thomas Kirkpatrick’s demurrer to the third cause of action is SUSTAINED

without leave to amend. Defendants' motion to strike is GRANTED as to emotional distress damages without leave to amend and DENIED in all other respects.

[1] In any event, as discussed in the Court's prior ruling on the demurrer to the FAC, negligent misrepresentation cannot be based on a promise to perform a future act. (See *Stockton Mortgage, Inc. v. Tope* (2014) 233 Cal.App.4th 437, 458.)